

7th Cause of Action Unfair Business Practices:

Business and Professions Code § 17200 states that “unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice.”

The Unfair Competition Law’s (“UCL”) scope is broad and coverage is sweeping. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.) “[B]ecause the statute is framed in the disjunctive, a business practice need meet only one of the three criteria to be considered unfair competition.” (*Wiseman Park, LLC v. Southern Glazer’s Wine & Spirits, LLC* (2017) 16 Cal.App.5th 110, 129.) “An unfair business practice occurs when the practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.” (*Podolsky v. First Healthcare Corp.* (1996) 50 Cal.App.4th, 632, 647.) The unfair standard is also intentionally broad, “thus allowing courts maximum discretion to prohibit new schemes to defraud.” (*Searle v. Wyndham Intl.* (2002) 102 Cal.App.4th 1327, 1334.) UCL claims must be pled with reasonable particularity. (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261.)

Defendants argue that Plaintiff has failed to state a cause of action under the UCL because a residential burglary does not qualify as a “business practice.” Plaintiff contends that the FAC alleges a planned, profit-seeking enterprise, which could be inferred to be called a business practice, and that “fencing stolen goods and selling stolen identities is commerce.” (Opp., p. 12.) However, the FAC contains no allegations of fencing or selling stolen goods or identities, or any allegations to infer that Defendants were engaged in a “profit-seeking enterprise.”

Special Demurrer as to Uncertainty for all Causes of Action against Kandice Birdsall OVERRULED.

General Demurrer as to the 3rd, 5th and 7th Causes of Action against Gregory and Kandice Birdsall SUSTAINED with leave to amend. Plaintiff to file amended complaint within 20 days.

General Demurrer as to the 4th Cause of Action against Gregory and Kandice Birdsall SUSTAINED without leave to amend.

Case Management Conference continued to 9.16.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2604642	MCDONALD VS PAUL DAVIS RESTORATION OF GREATER PALM	PETITION FOR RELEASE OF PROPERTY FROM MECHANICS LIEN

Tentative Ruling:

Petition for Release of Property from Mechanics Lien GRANTED.

No attorney’s fees awarded.